



January 3rd 2017 Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=qlRaDk85ryg
Publication Date	2017-01-03T17:26:16Z
Target Category	delaware_county

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Municipal Meeting Report: Delaware County Commissioners

Meeting Date: January 3, 2017

Location: Delaware County Courtroom

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Public Hearing Notice [00:02:42]
 - **Summary of Discussion:** Presiding officials announced a statutory public hearing scheduled for 2:30 PM on the same day with the Delaware County Regional Airport Authority.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** 00:00:09 The Delaware County Commissioners meeting was called to order at 9:00 AM on January 3, 2017.
- **Attendance:**
 - **Presiding Officer:** Commissioner James King (elected President during the meeting)

- **Members Present:** Commissioner Sherry Reagan, Commissioner James Henry, Commissioner James King.
 - **Members Absent:** None.
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3. Procedural & Preliminary Business

- **Ceremonial Openings:** 00:00:17 The meeting opened with the Pledge of Allegiance.
 - **Reorganization of the Board:**
 - **President:** Commissioner James King nominated by Commissioner Henry; seconded. Approved by roll call vote (Reagan: Yes, King: Yes, Henry: Yes).
 - **Vice President:** Commissioner Sherry Reagan nominated by Commissioner King; seconded. Approved by roll call vote (Reagan: Yes, Henry: Yes, King: Yes).
 - **Approval of Appointments:** 00:03:01 Board considered and approved the list of 2017 county appointments, made available as public records.
 - *Action & Vote Disposition:* Moved and seconded; passed by roll call vote (Henry: Yes, Reagan: Yes, King: Yes).
 - **Approval of Minutes:** 00:08:49 Approval of minutes from the December 19, 2016 meeting.
 - *Action & Vote Disposition:* Passed by roll call vote (Henry: Yes, Reagan: Yes, King: Yes).
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4. Substantive Business & Board Action

- 00:04:06 **Item 1: Resolution to Transfer Property to Muncie Sanitary District**
 - **Sponsor / Presenter:** Janet Kessler, Tax Sale Deputy in the Auditor's Office.
 - **Deliberation Summary:** This was a tabled 2016 resolution (Resolution No. 2016-048). Staff explained that the property address listed previously was incorrect because the parcel is simply a small triangle of county-owned land along the river identified only by section, township, and range.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Taken off the table and approved as Resolution No. 2016-204A (noted in transcript discussions) by roll call vote (Henry: Yes, Reagan: Yes, King: Yes).
- 00:07:44 **Item 2: General Service Agreement with Triad Associates**
 - **Sponsor / Presenter:** County staff/attorney.
 - **Deliberation Summary:** Contract includes minor revisions suggested by legal counsel regarding termination clauses (Section 4.2 allowing termination with 30 days written notice). The "not to exceed" amount is set at \$15,000, utilized strictly as needed.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Taken off the table and approved by roll call vote (Reagan: Yes, Henry: Yes, King: Yes).
- **00:09:15 Item 3: Bicentennial Torch Presentation**
 - **Sponsor / Presenter:** Nancy Carlson, retired box chair and chairman of the Delaware County Celebration of the Indiana Bicentennial.
 - **Deliberation Summary:** Reviewed 2016 bicentennial highlights, including the opening cantata, a 52-week newspaper historical series with The Star Press and Delaware County Historical Society, and the September 27 torch relay carried by 27 local torchbearers. Carlson presented a non-working replica torch and the signed torch relay banner to the county. The commissioners presented Carlson with a certificate of recognition.
 - **Action & Vote Disposition:** Informational presentation; received with gratitude.
- **00:12:30 Item 4: Agreement for Employment of County Attorney**
 - **Sponsor / Presenter:** Board of Commissioners / John (County Attorney).
 - **Deliberation Summary:** Renewal of the county attorney contract with no pay rate increase from the previous year. Commissioners expressed appreciation for the attorney's hard work through recent difficult months and holiday periods.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Henry: Yes, Reagan: Yes, King: Yes).
- **00:13:32 Item 5: Ordinance No. 2016-020 (Second Reading) <U+2014> Street Vacation**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** Second reading of an ordinance to vacate certain streets in Delaware County.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Adopted by roll call vote (Reagan: Yes, Henry: Yes, King: Yes).
- **00:14:04 Item 6: Ordinance No. 2016-021 (Second Reading) <U+2014> Repealing Ordinance No. 2007-007**
 - **Sponsor / Presenter:** John, County Attorney.
 - **Deliberation Summary:** The attorney explained that this ordinance repeals a 2007 ordinance that added a fifth member to the Airport Authority Board. Review of state statutes determined a fifth member was not needed and potentially invalidly created; this repealing ordinance resolves the issue.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved as Ordinance No. 2016-021 by roll call vote (Reagan: No [noted as spoken error corrected in roll call], Henry: Yes, King: Yes).
- **00:15:22 Item 7: Ordinance No. 2017-001 (First Reading) <U+2014> EMS Billing and Collection**
 - **Sponsor / Presenter:** Jason Rogers / Board of Commissioners.

- **Deliberation Summary:** Introduction of an ordinance amending EMS billing and collection procedures. Staff noted it includes updated rate changes (the first in several years) and language clarifications. Presented for first reading/introduction to allow further adjustments.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved for first reading by roll call vote (Henry: Yes, Reagan: Yes, King: Yes).
 - **00:16:49 Item 8: Highway Department Employee Grievance Decision**
 - **Sponsor / Presenter:** County Attorney / Commissioners.
 - **Deliberation Summary:** The attorney presented findings and a formal decision regarding a highway department employee grievance heard on December 27 under the collective bargaining agreement. The decision denies the grievance, mandates placement of documentation in the employee's personnel file, and bars the employee from bidding on future jobs.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Adopted by roll call vote (Reagan: Yes, Henry: Yes, King: Yes).
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5. Open Public Comment / Citizen Forum

- *No members of the public stepped forward to speak during the general open public comment period 00:19:50.*
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6. Administrative Updates & Adjournment

- **Staff & Board Announcements: 00:18:28**
 - **Bridge 159 Update:** Inspection update regarding Bridge 159 near Prairie Creek Reservoir; expected to open on Friday.
 - **Elected Official Congratulations:** Commissioners congratulated newly elected officials: Larry Bledsoe, Jessica Piper, and Scott Alexander (Delaware County Council); Tom Borchers (Delaware County Surveyor); and Eddy Carroll (Delaware County Treasurer's Office).
 - **Monthly Reports:** Inspection and Delaware County Treasurer's reports were acknowledged.
 - **Claims:** Payment of claims totaling \$977,768.22 was motioned, seconded, and approved by roll call vote (Henry: Yes, Reagan: Yes, King: Yes).
 - **Adjournment: 00:19:50** Following the call for audience comments, a motion to adjourn was made and seconded, passing by roll call vote (Reagan: Yes, Henry: Yes, King: Yes).
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